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New Government crashes environment

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Opinion: A close examination of the new Government's policies reveals a clear anti-environment bias. They signal a profound retreat from the responsible environmental management of recent Labour and National-led governments.

Unless reconsidered, the policy mix will lead to more freshwater pollution, loss of significant indigenous habitat, an increase in damaging pests, and species extinctions.

National, which has traditionally taken a responsible blue-green approach to environmental management, has traded away many of those principles in favour of a radical anti-environment policy programme.

The politics of the campaign period are morphing into revenge politics of a Government wanting to undo anything that has happened during the past six years, irrespective of its merits. This will ultimately come at the expense of our environment and economy.

Resource management reform

The Government has confirmed that it will repeal the Natural and Built Environment and the Spatial Planning Acts under urgency before Christmas, leaving us to carry on with the Resource Management Act, while it develops another set of laws.

But the Resource Management Act is broken. It has failed to protect the environment and has mired everyone in red tape. It is astonishing that returning to this law is seen as a positive thing. The new statutes represent a giant stride forward. They provide an environmental management framework fit for the future, not harking back to the past.

Ironically, the new laws that are about to be chopped do a lot of what the new Government wants. There would be fewer and clearer plans; faster plan-making; fewer consents; a focus on outcomes; strengthened compliance provisions; a fast track for renewables; and a National Planning Framework to provide consistency in Government objectives. And the Spatial Planning Act provides a much-needed strategic approach to addressing our housing and infrastructure deficits.

Instead of ditching five years' work entirely, why not focus on fixing the handful of things National has said it doesn't like: things like so-called new Māori concepts and engagement models; centralised decision-making; and regional planning committees. These can all be addressed with targeted amendments.

And what will the Government's new laws be based on, when they arrive, likely years down the track? First, the proposition that private property rights should be prioritised over the public interest in shared environmental wellbeing. And secondly, the antiquated idea that you can manage the environment separately from development, by two separate acts. That would wind back decades of progress.

Biodiversity

Aotearoa is in a biodiversity crisis. We are a global hotspot for nature with some 4,000 endemic species threatened or at risk of extinction. How we ensure these creatures survive the multiple pressures of habitat loss, pollution, invasive species and climate change is one of the most significant challenges we face over coming decades.

It is not just the Government's lack of any focus on conservation that raises red flags – but their retreat from evidence-based policy-making.

Much of our last remaining native biodiversity is found on private land. But Government will relitigate the recently introduced National Policy Statement for Indigenous Biodiversity, pausing implementation of policy years in the making. It will stop the identification of Significant Natural Areas and weaken the protection they provide. Yes, we need to consider fresh incentives to protect important habitat on private land. But we can't afford to abandon existing protections which will risk more species loss. Yet that is the direction of travel proposed.

And what of the Department of Conservation? It is charged with managing over one-third of our country. It has never been sufficiently resourced for that enormous task. Its work has been continuously hampered by boom-and-bust funding cycles and here we go again. DOC simply cannot make a 6.5% cut in expenditure from budgets that already fall far short of what is required without profound impacts on our natural world.

Conservation management is a long game and needs stable and focused policy, funding and government.

Freshwater management

The Government proposes to replace the National Policy Statement for Freshwater Management and the National Environmental Standards for Freshwater. Regional councils are currently engaging with communities and preparing plans to give effect to those instruments. They are due to be notified by the end of next year. Messing about with the national instruments part-way through that process will cause chaos, delay and more pollution for longer. Regional councils will be tearing their hair out.

The Government's proposal to change Te mana o te wai, to presumably prioritise commercial uses over the ecological health of waterways, is reprehensible. It has been captured by a minority group of radical farmers and needs to do a serious rethink about its freshwater management direction. The New Zealand public does not want polluted waterways which threaten not only our health and recreation, but also our international reputation and marketing of our primary products. This invites a return to the dirty dairying campaigns of the past which would pit town against country. Not good.

The freshwater reforms had their genesis under National and continued under Labour. At long last we have serious progress underway. The current proposals would take us back 2 decades. That's simply unacceptable.

Climate change and energy

The Government has, thankfully, committed to meeting our Nationally Determined Contribution, emissions budgets, and delivering net zero by 2050. The independent Climate Change Commission has survived the coalition bonfire.

But the new Minister for Climate Change, Simon Watts will have a serious wake-up call at COP28, defending policies which will be seen as undermining those commitments. They include allowing oil and gas exploration, defunding mitigation support, scrapping the clean car discount and cancelling other progressive transport initiatives.

Further, the rate of methane emissions reductions will be "reviewed", and if the farming lobby gets the weaker action it is asking for, that'll be a massive subsidy from the rest of the economy to pick up the slack. Funding from the ETS that was to be directed to mitigation will instead be used to support tax cuts, which is extremely short-sighted. And if the

Government decides not to accept the independent expert advice of the Climate Change Commission, which seems likely, litigation will almost certainly follow.

On energy policy, the challenge is to ensure that the Government doesn't sacrifice environmental values for renewables. A new fast-track law is coming and if it crudely prioritises renewables everywhere, that will be a disaster. The Spatial Planning Act could have helped here by mapping go and no-go areas for wind and solar.

One good thing coming from ACT is the commitment to introduce congestion charging, long overdue for Auckland. Other transport policies are mostly retrogressive.

Forestry

Current policy settings are driving the conversion of farmland into exotic forestry. As well as raising multiple issues over the impacts on biodiversity and farming communities alike, this also poses a threat to the effectiveness of the ETS, as an excessive quantity of credits issued for carbon removals will lead to a substantial reduction in the carbon price.

The current review of the ETS aims to address this concern, but the Government plans to stop it and retain the status quo. This decision perpetuates an over-reliance on offsetting, rather than encouraging real emissions reductions. The Government should continue with the review, or it won't achieve the country's emissions reduction targets.

The recently introduced National Environmental Standards for Commercial Forestry have already set higher standards for the management of slash, including its removal from steep land. The Government looks likely to retain these measures but should introduce further controls to limit clear-felling, require coup harvesting and reduce sediment pollution.

Oceans and fisheries

There is little mention of oceans in National's coalition agreements with ACT and New Zealand First. New Zealand First's agreement mentions longer duration for marine farming permits (which are already up to 35 years) and removing unspecified regulations that "impede the productivity and enormous potential of the seafood sector". There will be work to recognise blue carbon which is a positive thing. Amendment of the RMA to "enable" aquaculture is noted in both agreements. It is not clear what is envisaged here and whether it will mean a reduction in environmental protections for the coast.

National's environment policies included expanding marine protected areas, updating the Marine Reserves Act, protecting the Hauraki Gulf and Kermadecs, and addressing overfishing. They also refers to an integrated oceans management policy and Oceans Commission. All that would be welcome if National can get parliamentary support, potentially from opposition parties.

Conclusion

There are three key big-picture points to note. First, our system of government relies on the courts to provide checks on executive decision-making. They will likely be busy.

Secondly, the interests of tangata whenua and ENGOs will likely be more powerfully aligned than ever before.

And thirdly, New Zealanders didn't vote for polluted rivers, habitat loss and species extinctions and are likely to make that clear when they next go to the ballot box.

[New Government crashes environment](https://eds.org.nz/resources/documents/media-releases/2023/new-government-crashes-environment/)



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